

**FAR PART 6 JUSTIFICATION AND APPROVAL FOR OTHER
THAN FULL AND OPEN COMPETITION**

Program/Equipment: Defense Medical Logistics Standard Support (DMLSS)

Authority: 10 U.S.C. 3204(a)(1) as implemented in Revolutionary Federal Acquisition Regulation Overhaul (RFO) 6.103-1(c)(2)(ii) "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

Period of Performance (POP): 1 March 2026 – 30 June 2026

Amount:

Contract Specialist: Jasmine Jackson
Contract Specialist

Contracting Officer: Jeffrey C. Roberts
Procuring Contracting Officer

Technical Representative: Brandy Kuebbing
PSS Project Manager

Requirements Representative: JR Teer
Chief, Medical Outfitting & Support Branch

Center/District Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

[REDACTED]
NICOLE C. BOONE
Office of Small Business Programs

[REDACTED]
TAMAR GERHART
Office of Counsel

[REDACTED]
JEFFREY C. ROBERTS
Procuring Contracting Officer

**Justification and Approval
for Other than Full and Open Competition - RFO 6.103-1(c)(2)(ii)**

1. **Requiring Activity:** Defense Health Agency (DHA)
2. **Contracting Activity:** United States Army Corps of Engineers (USACE), Huntsville Engineering and Support Center (CEHNC), 300 Secured Gateway SW, Redstone Arsenal, AL 35808.
3. **Description of Action:** The purpose of this justification is to obtain approval for a [REDACTED] contract with Aktarius, LLC, CAGE: 5UV89, 243 Southwood Drive, Panama City, Florida, 32405-4905. This contract will be for a 4 month period of performance from 1 March 2026 to 30 June 2026 for the Defense Medical Logistics Support (DMLSS/LogiCole) program. The contract will be fully funded using Fiscal Year (FY) 2026 Operations & Maintenance (O&M) funds.
4. **Description of Supplies/Services:** This requirement is for essential technical and integration services for the DMLSS/LogiCole Facility Management (FM) program, a critical Automated Information System (AIS) that supports the entire Defense Health Agency (DHA) healthcare facility portfolio.

The DMLSS/LogiCole FM system is the primary tool used by DHA to manage its global real property portfolio, which encompasses over [REDACTED] square feet of medical facilities with a plant replacement value exceeding [REDACTED]. The system ensures facilities meet accreditation codes and standards, providing a safe and effective healthcare environment for Department of War (DoW) beneficiaries. The FM application provides comprehensive capabilities for scheduled maintenance, project management, regulatory compliance (e.g., The Joint Commission Statement of Condition), space management, and capital planning through the Joint Medical Asset Repository (JMAR).

Services include day-to-day technical services essential for system sustainment and user support, Program and Project Management, System Training and Access Management, Database Sustainment and Data Analysis, and Technical and Integration Management Support.

This bridge action will ensure these critical support functions continue uninterrupted. This action will consist of a four-month Period of Performance from 1 March 2026 to 30 June 2026, [REDACTED]
[REDACTED]

5. **Authority Cited:** 10 U.S.C. 3204(a)(1) as implemented in Revolutionary War Overall (RFO) 6.103-1(c)(2)(ii) (formerly FAR 6.302-1(a)(2)(iii)(B)), which provided that for DoD, services may be deemed as available from only one source when awarding a contract for the continued provision of highly specialized services would result in unacceptable delays in fulfilling agency requirements.

6. Reason for Authority Cited:

- a. **BACKGROUND:** The Military Health System (MHS) has undergone a major business process transformation that involved the establishment of the Defense Health Agency (DHA) in 2013 and a Combat Support Agency to provide reach back and reach out support to all Medical Treatment Facilities (MTF). In the National Defense Authorization Act of 2017, the DHA Facilities Enterprise expands its role to many of the functions

historically assigned to the Service Medical Activities (SMAs) (i.e.: Air Force Medical Service, Navy Bureau of Medicine and Surgery and US Army Medical Command).

The DMLSS mission is to improve the responsiveness of medical logistics support by implementing business process innovations that increase the effectiveness of medical logistics support and reduce operating costs.

The Government awarded the fourth generation of the DMLSS contract (W912DY26CA007) on 29 January 2026, prior to the expiration of the existing contract on 31 January 2026. The contract was awarded as a Firm-Fixed-Price (FFP) 8(a) direct contract to Aktarius LLC dba Dawson AKT. After award, the Government was notified that Aktarius was no longer eligible to receive the award due to a change in their ~~8(a)~~ size status for NAICS 541513 (Computer Facilities Management Services).

Therefore, the newly awarded contract was terminated on 30 January 2026, and the existing contract (W912DY23C0002) was extended 30-days to 28 February 2026 via a previously unexercised option to ensure continuity of essential services. This short-term measure provides the necessary time to process this justification for a bridge contract, which will prevent a lapse in critical support to the DHA facilities management mission while a long-term solution is procured.

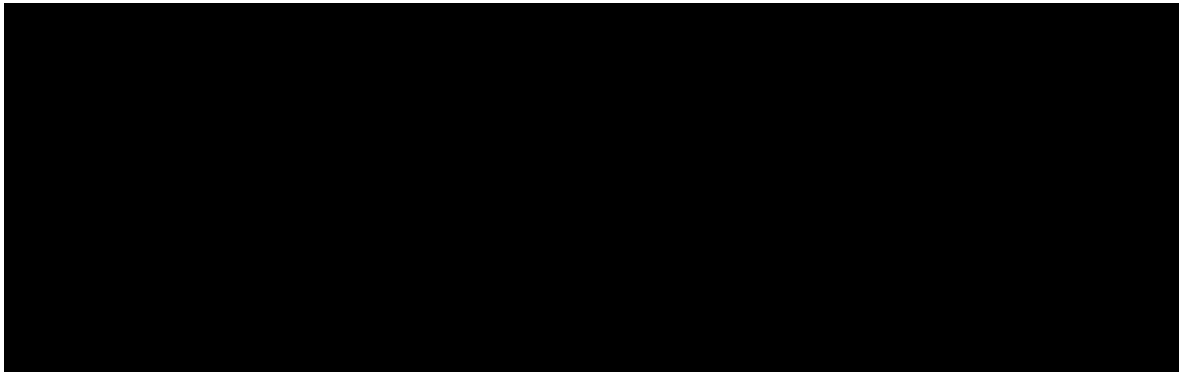
- b. **JUSTIFICATION:** Additional time is required due to the award to an ineligible contractor. The contractor, Aktarius, LLC is no longer considered a small business under the NAICS 541513 based on the size standard of \$37M. Failure to continue these critical services would disrupt continuity of care, delay essential sustainment and medical support functions, and degrade system availability and medical delivery. The incumbent, Aktarius, possesses unique institutional knowledge of the agency's legacy systems and operational environment that cannot be replicated without substantial time and cost. Awarding to another source would require extensive transition efforts, including system familiarization, knowledge transfer, and re-validation of performance standards, resulting in unacceptable delays providing critical services to the customer as discussed in detail below.
- c. **ALTERNATIVES:** This Justification and Approval request is to award a bridge contract for 4 months of service with the incumbent. Any other contract vehicle for these services is unfeasible given the timing for the immediate need.

One alternative was considered to issue a new stand-alone contract to another 8(a) company. Based on the projected need date of 28 February 2026, there is not enough time to get a new stand-alone contract in place to support this effort. For reference, the W912DY26CA007 contract took approximately 15 months to execute an award. The award timeframes for the requirements outlined in this J&A request are to be executed by 28 February 2026 due to the need for continuation of critical services for DHA hospitals both in and outside the United States. Therefore, it is unfeasible to make the timeline needed for award.

IMPACT: If the contract is not awarded by 1 March, no one will be performing the critical operations and maintenance for the DMLSS (Defense Medical Logistics Standard Support) system. This will immediately halt essential support for facility management, equipment maintenance, and operational readiness across more than [REDACTED] military treatment facilities. The direct consequence will be the inability to maintain the functionality of these facilities, with potential breakdowns in key infrastructure systems,

such as HVAC, power, water, and medical equipment, directly impacting operational capacity.

The immediate halt in DMLSS operations will result in disruptions to scheduled maintenance and repairs, leading to deteriorating conditions in military treatment facilities. Critical infrastructure will begin to fail, causing delays in routine operations and impacting the facilities' ability to support service members. Without timely repairs or maintenance, medical readiness will be severely compromised, and facilities will be forced to operate in suboptimal conditions, which will affect patient care delivery and response times.



Awarding a bridge contract is the only viable solution to maintain continuity in critical DMLSS operations, ensuring the continued operation and maintenance of facilities that are essential to military readiness and operational effectiveness

- 7. Efforts to Obtain Competition:** The previous contract was awarded as a Sole Source 8(a). A notice of intent was published 20 February 2026 on SAM.gov informing interested parties of the government's intent to non-competitively award to the incumbent, Aktarius. This notice closes on 07 March 2026, and no responses have been received to date. Any responses received will be considered in the follow-on acquisition.

Due to the urgent nature of this work as explained above, the government does not have sufficient time to award a contract to a new vendor to meet the immediate need without mission failure. However, the Government is concurrently developing a new, long-term acquisition strategy for the follow-on requirement.

- 8. Actions to Increase Competition:** The Government determined that only one responsible source is capable of meeting the Government's requirements within the required timeframe and technical constraints. To promote competition for future acquisitions, the Government will conduct comprehensive market research sufficiently in advance of the next requirement. Coordination with the Small Business Administration (SBA) has taken place to discuss potential vendors and a path moving forward.
- 9. Market Research (MR):** Market Research was conducted from 19 February 2025 through 15 April 2025 and refreshed on 11 February 2026 using various techniques as described below:

- a. Interagency Contract Directory (ICD). The Government queried the ICD on 11 February 2026 to identify all Federal contracting vehicles using various combinations of the PSC and NAICS information to identify capacities, regardless of Agency or Department, to



determine if one or more of these vehicles might satisfy the current requirement. There were no contracting vehicles that supported both the PSC and NAICS assigned to this requirement.

- b. Small Business Administration. The Government performed a small business market analysis through SBA's Dynamic Small Business Search (DSBS) on 11 February 2026. This small business market analysis resulted in 15 businesses performing under the NAICS and within the socio-economic classifications relevant to this acquisition. Of those 15, eight were 8(a) certified. Additionally, a coordination meeting was held on 12 February 2026 with the SBA Business Opportunity Specialist to discuss potential vendors.
- c. Ability One/Unicor. Searches on both Ability One and Unicor were conducted, but the required service was not found on either website.
- d. Federal Supply Schedules. The Government searched the GSA Advantage Federal Service Schedules for the required service. The query determined there were no available GSA sources for the requirements.
- e. Request for Information (RFI). A RFI was issued to two potential vendors, Bodwe Federal Services and Nakupuna Prime, LLC on 11 February 2026 with a closing date of 13 February 2026. Both vendors provided capability statements verifying they can successfully meet the requirement.

Conclusion: After careful consideration of the above, the Contracting Officer determined that no other sources are able to meet the agency's contractual needs in a timely manner. Due to the breadth of the services, the highly technical expertise of the staff required as well as the urgency, it is not physically possible for another contractor to take over and execute this work on short notice. The request for four months of service is reasonably calculated to support the program requirements until the long term follow-on contract is in place. This conclusion was discussed with the SBA, and the SBA provided concurrence on 17 February 2026 to continue services with Aktarius.

10. Interested Sources: The existing firm has expressed interest in supporting this effort. In addition, Bodwe Federal Services and Nakupuna Prime have also expressed interest and will be considered for the future acquisition.

11. Other Facts:

(a) Procurement history.

Award History				
Contractor	Business Size	Contract/Task Order	Period of Performance	Total Amount
Seven Generations Architecture & Engineering, LLC	SBA 8(a)	W912DY17D0047 W912DY19F0027	26 NOV 2018 -31 JUL 2021	
The Outfit/Guidon JV, LLC	SDVO	W912DY17D0049 W912DY19F0156	28 MAR 2019 -31 MAR 2021	

The Outfit/Guidon JV, LLC	SDVO	W912DY17D0049 W912DY19F0173	06 AUG 2019 -30 MAR 2021	
Aktarius, LLC dba Dawson AKT	SBA 8(a)	W912DY21C0025	01 APR 2021- 31 JAN 2023	
Aktarius, LLC dba Dawson AKT	SBA 8(a)	W912DY23C0002	01 FEB 2023- 31 JAN 2026 (with -8 extension)	

(b) The competitive status of these actions.

The current and previous generation of the DMLSS contract were solicited as sole-source 8(a). Prior to that, they were competed using fair opportunity procedures under a Multiple Award Task Order Contract (MATOC).

(c) Authority previously cited if less than full and open competition was used.

FAR Part 19.8 and the executed Partnership Agreement between U.S. Small Business Administration (SBA) 8(a) Business Development (BD) Program concern and Department of Defense

(d) If a justification was prepared to support the procurement made before this one, a summary of the contents of paragraph 7 of the justification for that procurement and an explanation of the results.

Not applicable, this is the first approval for other than full and open competition.

(e) If any prior contract for this requirement was accomplished using full and open competition, include a detailed explanation of the changed circumstances causing this action to now limit the sources.

Prior to 2021, the Medical Facilities Architect-Engineering (A-E) Services Indefinite Delivery Contract was used for this requirement which was set-aside for small business concerns including 8(a) contractors and Services Disabled Veteran Owned (SDVO) small business concerns. Three task orders (W912DY19F0027, W912DY19F0156, W912DY19F0175) were issued from the MATOC. It was later determined that while the DMLSS services did support A-E services at the time, the majority of the work moving forward would not be aligned to any specific A-E design effort, and as such, would be better suited as an independent contract vehicle. Market research indicated adequate 8(a) capability to support the requirement, so the subsequent contract was offered and accepted into the 8(a) program. As stated above, the Government awarded a Firm-Fixed-Price (FFP), 8(a) direct, stand-alone contract to Aktarius LLC dba Dawson AKT on 29 January 2026. After award, the Government was notified that Aktarius was no longer eligible to receive the award due to no longer being considered a small business under the NAICS 541513 based on the size standard of \$37M. While the Agency was able to exercise the remaining option, there is currently no vehicle in place to continue providing these critical services to the DHA after these 30 days. This J&A is needed to cover the period of time the Agency needs to secure a new contractor to continue providing these crucial services.

- (f) An explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys.

Not applicable, there are no unusual patterns in procurement history.

- (g) If a justification was prepared to support the procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes.

Not applicable. This is the first approval for other than full and open competition for the DMLSS Support.

12. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Brandy Kuebbing
Program Manager

Signature:
Date:

13. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Brandy Kuebbing
Program Manager

Signature:
Date:

14. Fair and Reasonable Price Determination: I hereby determine that the anticipated price to the Government for this contract action will be fair and reasonable based on the use of the previously evaluated and negotiated option year rates. Historic pricing for similar efforts and material under current and past contracts will be used as a basis for negotiation. The Government will request other than certified cost or pricing data, if necessary, to determine the price fair and reasonable in accordance with FAR 15.403.

Jeffrey C. Roberts
Procuring Contracting Officer

Signature:
Date:

15. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Jeffrey C. Roberts
Procuring Contracting Officer

Signature:

[REDACTED]

Requirement: DMLSS Contract

[REDACTED]

Date:

[REDACTED]

Approval

Based on the foregoing justification, I hereby approve the sole source procurement for the Defense Medical Logistics Standard Support (DMLSS) in the amount of [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 U.S.C. 3204(a)(1) as implemented in RFO 6.103-1(c)(2)(ii), Only One Responsible Source, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

[REDACTED]

Jeffrey C. Roberts
Contracting Officer